



File No.: EXP202307320

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against TELEFÓNICA MÓVILES ESPAÑA, S.A. (hereinafter, the respondent) without receiving the legally established response to their request. The claimant states that they exercised the right of access to their personal data on March 2, 2023, without having received the legally established response.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The respondent responded to the transfer and request for information on July 3, 2023. However, they do not provide evidence as required by Article 12.4 of the LOPDGDD, of compliance with the duty to respond to the request for the exercise of rights made by the affected party, stating that: "...The mentioned request for the exercise of rights is not recorded. The voice recordings mentioned therein are not recorded, as the request was not received through the channels enabled for such purposes..."

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 2.0, adopted on March 28, 2023, indicate in section 53 the following (the translation is in the Agency): "(...) However, if a data subject makes a request using a communication channel provided by the data controller, which is different from the one indicated as preferred, such request will generally be considered effective, and the data controller must process such request accordingly (...). Data controllers must make all reasonable efforts to ensure that the exercise of the rights of the data subject is facilitated (...)"

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Based on the above, the documentation provided infers a possible violation of the right of access.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the claimant's requests to be considered satisfied. Consequently, on August 8, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, to present any arguments they deemed appropriate within ten working days. The respondent has submitted arguments on two occasions throughout the procedure after the admission for processing, explaining to this Agency what occurred, but only in the first set of arguments did they provide evidence of a response to the claimant.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any arguments they deem appropriate. The claimant, in their arguments, states that they request: "...a copy of the calls and contacts made, as well as access to the personal data processed for the processing of this file..." The claimant continues detailing each of the deficiencies regarding the request and concludes by stating: "...For all the above, I disagree with the information provided by TELEFÓNICA MÓVILES ESPAÑA, S.A. for lacking veracity and not corresponding with the reality of the facts as they occurred, and I request its rectification."

FIFTH: After receiving the arguments from the claimant, the same were again forwarded to the

respondent, who, on this occasion, sent a detailed response to everything mentioned by the claimant but still failed to provide the response they are obliged to send, claiming that it was already sent in the letter dated August 24, 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on August 8, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the data subject's rights under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons if they are not going to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not negatively affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect third-party data.

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency; however, in the latest allegations submitted, they have not demonstrated that they

communicated their conclusions to the complaining party.

Now it is necessary to assess with the documentation provided whether the right of access has been met or not in accordance with the data protection regulations. Clarifying that any conflict/difference between the parties would be outside the scope of this complaint.

Analyzing the response of the entity being complained about, we find that in the second allegations submitted, clarifications are made regarding certain issues raised by the complainant; however, on this occasion, the entity being complained about does not accompany their writing with the necessary communication that must be directed to the complaining party informing them of the decision made regarding the request to exercise rights.

We conclude that the letter sent to the complainant to address the right of access dated August 24, 2023, would be incomplete, and the clarifications provided to this Agency in the latest allegations would complete what was requested if it were not for the fact that they do not demonstrate a response to the complainant.

Therefore, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been violated and to urge TELEFÓNICA MÓVILES ESPAÑA, S.A. with NIF A78923125, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. 1381-090823

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